

Law on Preschool Education

the consolidated text of the law

OG 10/97 , 107/07 , 94/13 , 98/19

effective 01/01/2019

I. GENERAL PROVISIONS

Article 1 (OG 94/13)

(1) This Law regulates preschool education and care for preschool children (hereinafter: preschool education) as part of the system of education and care for children.

(2) Preschool education shall include programs of education, health care, nutrition and social care provided in kindergartens in accordance with this Act.

(3) Kindergartens are public institutions that carry out the activity of preschool education as a public service.

(4) The terms used in this Act for persons of male gender are neutral and refer to both male and female persons.

Article 1a (OG 94/13)

(1) As a public authority, the kindergarten shall perform the following tasks:

- enrollment of children in kindergarten and printouts of children from kindergarten, with proper documentation,

- issuing certificates and opinions,

- entering kindergarten data into a common electronic register.

(2) When a kindergarten decides on the right, obligation or legal interest of a child, parent or guardian or other natural or legal person in connection with the activities referred to in paragraph 1 of this Article or other activities performed by it as a public authority, it shall act in accordance with the provisions of the law governing the general administrative procedure.

Article 2

Counties, the City of Zagreb, cities and municipalities (hereinafter: units of local and regional self-government) have the right and obligation to decide on the needs and interests of citizens in their area for organizing and implementing pre-school education programs and in order to meet these needs establish kindergartens .

Article 3

(1) Preschool education shall be organized and implemented for children from the age of 6 months to the beginning of primary school.

(2) Preschool education shall be realized in accordance with the developmental characteristics and needs of children, as well as the social, cultural, religious and other needs of families.

Article 4

In kindergartens, educational work is done in Croatian language and Latin script.

Article 5

Preschool education of children of persons belonging to national minorities shall be accomplished in accordance with this Law and the regulations governing the rights of persons belonging to national minorities.

Article 6

Preschool education is realized on the basis of the State Pedagogical Standard of Preschool Education, which is adopted by the Croatian Parliament at the proposal of the Government of the Republic of Croatia.

The state pedagogical standard of preschool education determines:

1. benchmarks for the number of children in educational groups,
2. the structure of the program in terms of duration and purpose,
3. benchmarks for the number of educators, professional assistants and other kindergarten workers,

4. criteria for financing kindergarten programs,
5. material and financial working conditions,
6. preschool education of children with special needs (children with disabilities and gifted children),
7. pre-school education of children of Croatian citizens abroad,
8. pre-school education of children belonging to national minorities,
9. Pre-school structure.
11. National pedagogical standard of pre-school education

II. ESTABLISHMENT AND STARTING OF A KINDERGARTEN

1. Establishing a kindergarten

Article 7

(1) Kindergarten may establish:

1. The Republic of Croatia,
2. units of local and regional self-government,
3. religious communities,

4. other legal and natural persons.

(2) The kindergarten may be jointly established by local and regional self-government units and natural and legal persons.

(3) The Republic of Croatia shall establish a kindergarten by a law or regulation of the Government of the Republic of Croatia or by a decision of the Ministry responsible for education.

Article 8

The Kindergarten Establishment Act contains the provisions prescribed by the Institutions Act and the provisions of:

- the kindergarten program and the manner and conditions of its implementation,
- on educators and associates,
- the conditions and manner of securing space and equipment,
- on the powers of the kindergarten director.

Article 9 (OG 94/13)

(1) Local and regional self-government units, religious communities and legal and natural persons establishing a kindergarten shall be obliged to submit the founding act to the Ministry responsible for education for the purpose of evaluating the compliance of this act with the law.

(2) Issuance of a decision on the conformity of the founding act with the law and the procedure in connection with the issuance of such decision shall be carried out in accordance with the Law on Institutions.

(3) If during the performance of the activity the name or seat of the kindergarten changes or if the activity of the kindergarten in new premises is changed or if other information contained in the founding act pursuant to a special law is changed, the kindergarten founder shall be obliged to make changes to the founding act and submit the request referred to in paragraph 1 of this Article.

2. Registration of the kindergarten in the court register

Article 10 (OG 98/19)

(1) Pursuant to the provisions of this Act, the activities related to the provision of preschool education activities shall be performed by the administrative body of the county, that is, the City of Zagreb, within the scope of which it is entrusted with performing state administration tasks related to those activities.

(2) The kindergarten founder shall file an application for entry in the court register after obtaining:

- Decision issued by the Ministry responsible for education that the act establishing the kindergarten is in accordance with the law,

- decision of the competent administrative body of the county or city office of the City of Zagreb in charge of education, which authorizes the beginning of performing the activity of preschool education.

3. Issuance of a decision on starting a kindergarten activity

Article 11 (OG 94/13)

(1) A kindergarten may commence its operations after having obtained a decision to start work.

(2) The decision referred to in paragraph 1 of this Article shall be issued by the competent administrative body of the county, that is, the City Office of the City of Zagreb, if the kindergarten meets the conditions for commencement of the kindergarten activity.

(3) The procedure for determining the fulfillment of the conditions for starting kindergarten shall be carried out in accordance with the provisions of the law governing the general administrative procedure, and shall be carried out by an expert commission appointed by the competent administrative body of the county, or city office of the City of Zagreb.

(4) If during the performance of the activity the headquarters of the kindergarten, or the premises in which the kindergarten performs the activity or part of the activity, changes or another condition prescribed by law and pursuant to the law issued by the regulation for performing the activity of the kindergarten, the kindergarten

is obliged before the beginning of work. in changed conditions apply for the issuance of a decision to start working in changed conditions.

(5) After the enforcement of the decision to start work, ie the decision to start kindergarten in changed conditions, the kindergarten shall be entered in the common electronic register of pre-school institutions kept by the ministry responsible for education and may start or start working in changed conditions.

Article 12

The conditions for starting a kindergarten are:

- approved work program,
- the number of educators, associates and other workers required,
- provided space and equipment for the permanent performance of activities, in accordance with the standards and norms of work prescribed by the State pedagogical standard of preschool education referred to in Article 6 of this Act,
- funds provided for setting up and starting a kindergarten,
- evidence that other conditions prescribed by law have been fulfilled, and by regulations adopted by law.

4. Prohibition of business activities

Article 13

The kindergarten, which no longer fulfills the conditions laid down in Article 12 of this Act, shall be prohibited by the educational inspector after the measures have been taken and propose to the commercial court at which the kindergarten is entered in the court register to decide on its termination.

5. Kindergarten development plan and network

Article 14 (OG 94/13)

(1) The representative body of the local and regional self-government unit and the City of Zagreb shall adopt a plan for the kindergarten network in its area.

(2) Based on the plans referred to in paragraph 1 of this Article, the county representative body shall coordinate the development of a kindergarten network in its area.

(3) The kindergarten network shall determine the kindergartens and other legal entities carrying out the activity of preschool education in the area for which the network is established, with all their facilities where the programs are implemented.

(4) The kindergarten network must meet the requirements of accessibility and rational organization of kindergartens and programs for preschool children in accordance with their needs and abilities.

III. NATIONAL CURRICULUM FOR KINDERGARTEN AND EDUCATION AND KINDERGARTEN PROGRAMS

Article 15 (OG 94/13)

(1) Early childhood and pre-school education shall be provided on the basis of the national curriculum for pre-school education (hereinafter: the national curriculum) and the kindergarten curriculum.

(2) The national curriculum establishes values, principles, general educational goals and contents of all activities and programs, approaches and ways of working with early and pre-school children, educational goals in the areas of children's development and their competences, and evaluation.

(3) The national curriculum shall be adopted by the minister responsible for education.

(4) The kindergarten curriculum shall be adopted by the governing council of the kindergarten by September 30 of the current pedagogical year, which shall determine: the program, the purpose of the program, the program holders, the manner of realization of the program, the time of the program activity and the method of evaluation.

(5) The content and duration of the pre-school program shall be prescribed by the minister competent for education by ordinance.

12. Rulebook on the content and duration of preschool programs

13. Decision on adopting the National Curriculum for Early and Preschool Education

Article 15a (OG 94/13)

(1) In the kindergarten the following are realized:

- regular programs of care, education, education, health care, nutrition and social care for children of early and preschool age that are adapted to the developmental needs of children and their capabilities and abilities,

- programs for early and pre-school children with disabilities,

- programs for gifted children of early and preschool age,

- programs in the language and script of national minorities,

- pre-school programs,

- early language learning programs and other programs of artistic, cultural, religious and sports content.

(2) Depending on the needs of the children and the requirements of the parents, the kindergarten may carry out programs in accordance with the provisions of the State pedagogical standard of preschool education.

(3) The programs referred to in paragraphs 1 and 2 of this Article shall be approved by the ministry responsible for education.

(4) If in the course of performing the activity for which the kindergarten is established, the activity is expanded by the implementation of new programs or the kindergarten changes the program, the kindergarten is obliged to submit a request for the approval referred to in paragraph 3 of this Article before the start of the implementation of the program.

(5) If, due to the expansion of activities, the approved work program is changed as one of the conditions for commencing the activity through the implementation of new programs or modification of the program referred to in paragraph 4 of this Article, the kindergarten shall, before the implementation of the program, request to issue a decision on starting work in changed conditions.

(6) After obtaining the consent referred to in paragraph 3 of this Article and after the execution of the decision referred to in paragraph 5 of this Article, the kindergarten may start implementing new programs or amended programs.

Article 16

(1) In implementing the program referred to in Article 15 of this Act, the kindergarten shall:

- create appropriate conditions for the growth and development of each child,
- supplementing family upbringing and establishing open cooperation with parents and the immediate children's environment through their openness.

(2) The working hours of kindergartens must be adapted to the needs of children and working parents.

Article 17

(1) In kindergartens, programs for early and pre-school children with disabilities shall be organized under special conditions and a program prescribed by the minister responsible for education.

(2) At the proposal of the primary care physician, the type and degree of difficulty in the development of the child and the need for appropriate conditions for the care, upbringing and protection of children with disabilities shall be determined by the expert commission established under the law governing the relations in the field of social welfare.

(3) The programs, procedure for determining giftedness and working conditions with gifted children of early and pre-school age shall be established by the minister competent for education.

Article 18

(1) The programs for health care of children, hygiene and proper nutrition of children in kindergartens shall be established by the minister competent for health.

(2) Social welfare programs in kindergartens shall be established by the minister competent for social welfare.

(3) The programs referred to in paragraphs 1 and 2 of this Article shall be approved by the minister responsible for education.

7. The program of children's health care, hygiene and proper nutrition of children in kindergartens

Article 19

(1) The kindergarten shall organize and carry out educational work with children divided into groups of full-day, half-day, multi-day or shorter day care.

(2) The organization and implementation of educational work in kindergartens in accordance with paragraph 1 of this Article shall be conducted on the basis of the State pedagogical standard of pre-school education referred to in Article 6 of this Act.

Article 20

(1) Priority in enrolling children in kindergartens owned by a unit of local and regional self-government or state-owned shall be given to children of parents of victims and invalids of the war, children of families with three or more children, children of working parents, children with disabilities, children of single parents and children in foster families, children in the year before primary school and children of parents receiving child allowance.

(2) The manner of realizing the benefits of enrolling children in kindergarten shall be determined by the founder of the kindergarten by his act.

Article 21

(1) The kindergarten shall carry out its activity on the basis of the annual plan and work program adopted for the teaching year running from September 1 of the current year to August 31 of the following year.

(2) The annual plan and program of work for the pedagogical year shall be adopted by the governing board of the kindergarten by 30 September.

(3) The annual plan and program of work shall include programs of educational work, programs of health care of children, hygiene and nutrition, programs of social welfare, as well as other programs which the kindergarten implements in agreement with the parents of children.

Article 22

The size of the kindergarten, depending on the number of educational groups of children, the number of children in educational groups, the age of children in individual educational groups, the size of the day care centers, the norms of equipment and the norm of direct work of the educators in the group, is regulated by the minister responsible for education, in accordance with the State Pedagogical Standard of Preschool Education and education referred to in Article 6 of this Act.

Article 23 (OG 94/13)

(1) Work with children of early and preschool age shall be organized in nursery and kindergarten educational groups.

(2) Preschool education programs may be implemented through:

- in primary schools,

- as short programs of educational work with children of early and pre-school age (playrooms) at libraries, health, social, cultural and sports institutions, associations, other legal entities and natural persons-craftsmen.

(3) The preschool education program and the work of the organizational unit within the legal entity referred to in paragraph 2 of this Article shall be conducted by the manager in accordance with the law, the act of incorporation and the statute of the legal entity.

(4) The special conditions and criteria for the implementation of the program referred to in paragraph 2 of this Article shall be laid down by the minister responsible for education.

(5) The competent administrative body of the county, that is, the City Office of the City of Zagreb, shall determine the fulfillment of the conditions for the beginning of work and implementation of the program referred to in paragraph 2 of this Article.

3. Rulebook on special conditions and criteria for the realization of the preschool education program

Article 23a (Official Gazette 94/13 - effective 31 August 2014)

(1) The preschool program is compulsory for all children in the year preceding primary school.

(2) The preschool program for children attending kindergarten shall be integrated into the regular kindergarten preschool program.

(3) The obliged preschooler who does not attend kindergarten shall enroll the preschool program at the kindergarten or elementary school closest to his / her place of residence, which implement the preschool program for children not attending kindergarten.

(4) In the absence of a kindergarten or primary school in a particular area implementing a preschool program, the unit of local or regional self-government shall be obliged to ensure the implementation of the preschool program for children referred to in paragraph 3 of this Article, in such a way as to ensure the transport of children to the nearest kindergarten or elementary school providing the preschool program, if it is not more than 20 kilometers from the child's place of residence.

(5) If the nearest kindergarten or primary school implementing the preschool program referred to in paragraph 4 of this Article is more than 20 kilometers from the place of residence of the child, the unit of local or regional self-government shall establish the kindergarten / its branch or organize the program elementary school preschools within 20 kilometers of the child's place of residence.

IV. KINDERGARTEN WORKERS

1. Educational workers and other workers

Article 24 (OG 94/13)

(1) The following educational workers shall be employed in the kindergarten in the field of nursing, education, social and health care and child care: educator and professional associate (pedagogue, psychologist, speech therapist and rehabilitator) and nurse as health care manager.

(2) In addition to the educational workers referred to in paragraph 1 of this Article, kindergartens and other persons perform administrative-technical and auxiliary tasks (hereinafter: other workers).

(3) Educational workers in kindergarten shall have the appropriate type and level of education, passed the examination and established medical capacity to perform the tasks referred to in paragraph 1 of this Article.

(4) The activities of educators of children from the age of six months to the beginning of elementary school may be performed by a person who has completed undergraduate university study or vocational study of the appropriate type, or study of an appropriate type that has obtained a university degree in accordance with earlier regulations, as well as a person who has completed a university degree or a specialist degree of a relevant type.

(5) In addition to the persons referred to in paragraph 4 of this Article, the activities of educators who carry out the preschool program at primary schools may be performed by persons who fulfill the conditions for performing the activities of classroom teacher in primary school in accordance with a special regulation.

(6) The duties of an associate may be performed by a person who has completed a university degree or a specialist degree of a relevant type.

(7) The activities of a nurse may be performed by a person who has completed undergraduate university study or professional nursing studies, or studies that have obtained a university degree in nursing in accordance with previous regulations, as well as a person who has completed a university graduate study or specialist nursing study .

(8) The appropriate type of education of educational workers and the level and type of education of other workers in kindergarten shall be prescribed by an ordinance by the minister competent for education.

4. Rulebook on the type of professional qualification of professional staff and the type and degree of professional qualification of other staff in kindergarten

Article 25 (OG 94/13)

(1) An employment relationship in a kindergarten may not be based on a person who has been legally sentenced to imprisonment (regardless of whether a suspended or unconditional sentence has been pronounced) for any of the criminal offenses committed with intent to life and body, against the Republic of Croatia, against the judiciary , against public order, against property, against official duty, against humanity and human dignity, against personal freedom, against sexual freedom, sexual abuse and exploitation of a child, against marriage, families and children, against human health, against general security, forgery, and any other offense committed to the detriment of the child or by the use of the child or a minor, unless rehabilitation under a special law has occurred.

(2) The employment in a kindergarten shall not be instituted by a person against whom criminal proceedings are conducted for any of the offenses referred to in paragraph 1 of this Article.

(3) Employment in a kindergarten may not be started by a person who has been convicted of a misdemeanor for violent offenses unless he has been rehabilitated unless special rehabilitation has occurred.

(4) A person who is being prosecuted for a misdemeanor procedure for any of the misdemeanor acts referred to in paragraph 3 of this Article may not be employed in a kindergarten.

(5) If a person employed in kindergarten is legally convicted of any of the offenses referred to in paragraph 1 of this Article or any of the misdemeanor offenses referred to in paragraph 3 of this Article, the kindergarten as an employer shall terminate the employment contract without the obligation to comply with the prescribed or the agreed termination notice by extraordinary termination of the employment contract, within 15 days from the day of finding the final conviction, and after the expiration of that term by regular termination of the employment contract conditioned by the hidden behavior of the worker, in which case the employer, at the same time as the termination of the employment contract, require workers to stop working immediately during the notice period.

(6) If the kindergarten, as an employer, learns that a person has been initiated against a person in employment in a kindergarten and is being prosecuted for one of the offenses referred to in paragraph 1 of this Article or a misdemeanor procedure for one of the misdemeanor offenses referred to in paragraph 3 of this Article. , shall remove a person from the performance of his / her duties until the termination of criminal or misdemeanor proceedings, that is, the longest until the final judgment becomes final, with the right to remuneration in the amount of two-thirds of the average monthly salary earned by the person in the three months prior to removal from the performance of his / her duties.

(7) If a criminal or misdemeanor procedure is initiated against a worker by a final decision, or the employee is released from liability by a final judgment, the worker shall be returned the suspended part of his salary from the first day of removal.

(8) A person who has a final conviction, or against whom criminal proceedings have been instituted for one of the criminal offenses referred to in paragraph 1 of this Article, or a misdemeanor procedure for one of the misdemeanor offenses referred to in paragraph 3 of this Article, may not carry out work in a kindergarten or as a kindergarten outsider.

(9) Persons who have been banned from work or who have terminated their employment due to unlawful and / or unprofessional treatment at the expense of the rights and interests of children may not work in a kindergarten.

(10) Employment in a kindergarten may not be started by a person who has a pronounced measure to protect the welfare of the child in accordance with a special regulation.

2. Establishing an employment relationship in kindergarten

Article 26 (OG 94/13)

(1) Employment in a kindergarten shall be based on a contract of employment based on a competition.

(2) The decision on the publication of the competition shall be taken by the Administrative Council.

(3) The vacancy notice shall be published on the web pages and bulletin boards of the Croatian Employment Service, as well as on the web pages and bulletin boards of the kindergarten, and the deadline for receipt of candidates' applications may not be less than eight days.

(4) By way of derogation from paragraph 1 of this Article, employment may be based on a contract of employment and without a vacancy:

- when the performance of the job does not suffer a delay until the employment is established on the basis of a competition, but not longer than 60 days,

- when the need to carry out the work does not exceed 60 days.

(5) If a person who does not meet the requirements from Article 24 of this Law is not invited to the competition, the competition shall be repeated within five months, and until the employment is established on the basis of the repeated competition, the employment relationship may be based with a person who does not meet the prescribed ones. conditions.

(6) A fixed-term employment contract shall be concluded with the person referred to in paragraph 5 of this Article, until the vacancy is filled on the basis of repeated competition with a person who fulfills the prescribed conditions, but not longer than five months.

(7) The decision on establishment and termination of employment shall be made by the Governing Board at the proposal of the Director.

(8) By way of derogation from paragraph 7 of this Article, in the case where it is necessary to employ a person for the purpose of performing activities that do not suffer a delay, the director shall decide on employment.

(9) The manner of making a decision on establishing an employment relationship in a kindergarten founded by a religious community or other natural and legal person referred to in Article 7, paragraph 1, item 4 of this Act shall be regulated by a general act of the kindergarten.

Article 27

Kindergarten educators and associates who have a fixed-term employment contract may, for justifiable reasons determined by the kindergarten governing boards, establish a non-competitive employment relationship in another kindergarten.

3. Trainees

Article 28

(1) An educator and a professional associate who is employed for the first time as an educator or professional associate in a kindergarten shall start working as an intern.

(2) The internship shall last one year.

(3) After completing the traineeship, the trainee shall pass the professional examination.

(4) The trainee who does not pass the professional examination within one year from the day on which his traineeship expired shall cease working in the kindergarten.

(5) The time limit referred to in paragraph 4 of this Article shall not run during maternity leave, temporary incapacity for work and military service.

(6) An educator and a professional associate with no work experience may take an internship and pass the professional exam without having an employment relationship (volunteer work).

(7) The manner and conditions for passing the professional examination, as well as the program of apprenticeship, shall be prescribed by the minister competent for education.

2. Rulebook on the manner and conditions for taking the professional exam of kindergarten teachers and associates in kindergarten

4. Professional development and advancement of educators and professional associates in professional positions

Article 29

Educators and associates are obliged to undergo professional training in accordance with the law and the act issued by the minister responsible for education.

Article 30

(1) Educators and professional associates may, while employed, advance in the profession and acquire the position of mentor and advisor.

(2) The procedure, manner and conditions for advancement of the profession and the acquisition of official positions shall be prescribed by the minister competent for education.

1. Ordinance on the manner and conditions for advancement in the profession and promotion to the positions of educators and professional associates in kindergartens

5. Termination of employment of educators and professional associates

Article 31

(1) An educator and an associate whose psychophysical status during work in a kindergarten is impaired to the extent that it substantially reduces his / her work capacity shall be referred for medical examination.

(2) The decision on referral for medical examination shall be made by the Administrative Council, upon the proposal of the Director.

(3) The term of employment of the kindergarten teacher and professional associate who refuses to execute the decision referred to in paragraph 2 of this Article shall be terminated by the termination of the employment contract.

(4) If the expert finding of the competent health institution or occupational health office confirms that the work capacity of the educator or professional associate is significantly impaired, the administrative council shall make a decision releasing the educator or professional associate with children and, if possible, distribute it to job according to remaining work ability.

(5) The termination of employment in kindergarten shall be terminated by the termination of the employment contract in the kindergarten and the professional associate who refuses the schedule in accordance with paragraph 4 of this Article.

Article 32

Educator and expert associate terminate employment:

- if the circumstances referred to in Articles 25 and 31 (3) and (5) of this Act arise,
- if the Governing Council determines that the educator and professional associate do not pursue the educational program in accordance with the law and regulation issued on the basis of the law,
- if he fails the professional examination within the prescribed period,
- in other cases established by this Law and the Labor Law.

6. Exercises and experimental work in kindergartens

Article 33

(1) In the kindergarten the following can be realized:

- training programs for the practical training of students,

- experimental work programs of scientific research and promotion of professional work,

- programs of the VET Center for the training of employed professional workers and the promotion of professional work.

(2) The manner of work and the criteria for financing kindergartens that implement the programs referred to in paragraph 1 of this Article shall be prescribed by the minister responsible for education.

9. Rulebook on Exercises and Experimental Programs in Kindergartens and on Kindergartens as Vocational Development Centers

V. KINDERGARTEN MANAGEMENT

1. Governing Council

Article 34

(1) The kindergarten shall be managed by a governing council.

(2) The Governing Council shall consist of 5 to 7 members.

(3) At least half of the members of the Administrative Council shall be appointed by the founder from among public employees, one member shall be elected by the parents of the children of the service users, and the other members of the Administrative Council shall be elected by secret ballot from the kindergarten teachers and professional associates.

(4) The term of office of the members of the Governing Board shall be four years.

(5) The composition and number of members of the Governing Council, the method of election or appointment of its members, the manner of work and decision-making shall be determined by the act on the establishment and the statute of the kindergarten.

Article 35 (OG 94/13)

(1) In addition to the rights and obligations established by the Law on Institutions, the Administrative Council as an administrative body shall:

- decides on the acquisition, encumbrance and alienation of the kindergarten real estate under the conditions prescribed by the act of establishment and the statute of the kindergarten, with the consent of the founder of the kindergarten,
- propose to the founder the status change of the kindergarten,
- propose to the founder to change the name of the kindergarten,
- decides on the enrollment of children and the criteria for enrollment, with the consent of the founder,
- decides on the establishment and termination of employment at the proposal of the kindergarten director, in accordance with this Law,
- performs other tasks stipulated by the act on the foundation and the statute of the kindergarten.

(2) For kindergartens founded by the Republic of Croatia, the Ministry responsible for education shall give, or make decisions on behalf of the founder, the consent and decisions on behalf of the founder.

2. Kindergarten Director

Article 36

(1) The kindergarten director shall be the kindergarten manager and professional head.

(2) In addition to the tasks specified in the Law on Institutions, the Director:

- propose an annual work plan and program,

- takes care of the implementation of the decisions of the Governing Board, the Board of Education and other bodies,

- performs other tasks specified in the Articles of Incorporation and the Articles of Association.

Article 37 (OG 94/13)

(1) A person who qualifies as an educator or professional associate and has at least 5 years of experience in preschool education may be appointed as a kindergarten director.

(2) The director shall be elected on the basis of a public competition announced by the administrative council of the kindergarten in accordance with the law and the statute.

(3) The director shall be appointed and dismissed by the founder of the kindergarten upon the proposal of the kindergarten governing council.

(4) The kindergarten director established by the Republic of Croatia shall be appointed and dismissed by the minister responsible for education.

(5) The director shall be appointed for a term of four years. The same person may be reappointed.

(6) If no one applies for the competition or none of the candidates is selected, the competition shall be repeated. Until the appointment of the director on the basis of the repeated competition, the acting director will be appointed, but for a maximum of one year.

(7) A person who qualifies as a kindergarten director may be appointed acting director.

(8) If the principal fails to fulfill the obligations laid down in this Act and other regulations, the kindergarten founder, at the proposal of the administrative council or administrative body that has found irregularities and illegalities in the work of the director, shall dismiss the director and appoint another person in accordance with this Act.

(9) Prior to the decision on dismissal, the director must be given the opportunity to state the reasons for the dismissal. In case of dismissal, the acting director will be appointed, and the kindergarten is obliged to announce a competition for the director within 30 days from the appointment of the acting director.

Article 37a (OG 94/13)

(1) In the event of temporary impediment to performing the principal's duties, the kindergarten director shall be replaced by a person from among the members of the preschool council.

(2) The person referred to in paragraph 1 of this Article shall be appointed by the Administrative Council in the manner regulated by the kindergarten statute.

(3) The person who replaces the director has the right and duty to perform those tasks of the director whose execution cannot be delayed until the director returns.

Article 38

The provisions of this Act relating to the manner of election and the term of office of the Governing Board and the Director shall not apply to the kindergarten established by the religious community, or other natural and legal person referred to in Article 7, paragraph 1, item 4 of this Act.

3. Educational Council

Article 39

(1) The kindergarten expert body shall be the educational council.

(2) The Educational Council shall be composed of all educators, professional assistants and health workers who carry out the preschool education program in kindergarten.

(3) The Educational Council participates in the establishment of the plan and program of the kindergarten work, monitors its implementation, discusses and decides on professional issues of work, encourages and promotes professional work, and performs other professional tasks stipulated by the law, the act on establishment and the statute of the kindergarten.

(4) The scope and manner of work of the preschool council shall be regulated in more detail by the statute of the kindergarten.

4. Statute and other general acts of kindergarten

Article 40

- (1) The kindergarten shall have a statute and other general acts.
- (2) The kindergarten statute shall regulate in more detail the structure, powers and manner of decision-making of individual bodies, types and duration of certain programs, conditions and manner of providing services, kindergarten hours, publicity of work and other issues important for the performance of the activity and business of the kindergarten.
- (3) The Ordinance on the Internal Organization and Method of Kindergarten shall regulate in more detail the internal organization and manner of performing the activity of the kindergarten as a public service.
- (4) The kindergarten shall have other general acts in accordance with the law, the act of establishment and the statute of the institution.

Article 41

- (1) The statute of the kindergarten and the ordinance on the internal organization and manner of operation of the kindergarten as a public service shall be adopted by the governing council with the prior consent of the founder of the kindergarten.
- (2) Other general acts of the institution shall be adopted by the governing council in the manner prescribed by the act of incorporation or the statute.

Article 42

- (1) The provisions of the statute and ordinance on the internal organization and mode of operation of the kindergarten governing the operation of the kindergarten in the performance of its public service activities shall be made accessible to the public in an appropriate manner.
- (2) The director of the institution shall, within eight days from the day of its enactment, submit the statute and ordinance on the internal organization and mode of operation of the kindergarten as a public service, the competent administrative body of the county, or the city office of the City of Zagreb in charge of education.
- (3) The general acts referred to in paragraphs 1 and 2 of this Article may be suspended from execution in accordance with the provisions of the Institutions Act.

YOU. UNION ORGANIZATION

Article 43

(1) Union organizing in kindergartens is free.

(2) In the event of a strike, the strike committee, the kindergarten director and the governing council shall be obliged to provide adequate care, nutrition, health care, and other child care attending the kindergarten program during the strike.

(3) Unless otherwise provided by this Law, the general strike regulations shall apply to the issues of exercising the right to strike and organizing a strike.

VII. SUPERVISION

Article 44

(1) The Ministry competent for education shall supervise the implementation of this Act and the regulations adopted thereunder.

(2) Inspection supervision shall be carried out by the educational inspection in accordance with a special law.

(3) The professional and pedagogical supervision of the work of educators and professional assistants shall be carried out within the scope of the Ministry by the professional competent pedagogical supervisors and other professional persons authorized by the minister competent for education.

(4) The manner of performing professional pedagogical supervision and the rights, duties and powers of professional pedagogical supervisors and other persons authorized for professional pedagogical supervision shall be regulated by a separate law.

(5) Health-inspection supervision over the implementation and enforcement of this Law, in the part related to health care and nutrition of children, shall be performed by the ministry competent for health-health inspection.

(6) Sanitary inspection supervision over the implementation and enforcement of this Act, in the part related to the nutrition of children, shall be carried out by the ministry competent for health - sanitary inspection.

(7) Supervision of professional work in the application of this Law, in the part related to child welfare, shall be organized and conducted by the ministry competent for social welfare.

Article 45

(1) If the competent state administration body determines that the kindergarten does not meet the statutory requirements, it shall set a time limit within which the kindergarten is obliged to remedy the identified deficiencies.

(2) If the kindergarten does not remedy the identified deficiencies within the specified deadline, the competent state administration body shall issue an act prohibiting the work of that kindergarten. The costs of relocating children to another kindergarten or other appropriate institution shall be borne by the kindergarten which is forbidden to work and its founder or owner.

VIII. TERMINATION OF THE KINDERGARTEN WORK

Article 46

(1) The kindergarten shall cease to operate under the conditions and in the manner prescribed by the Institutions Act and this Act.

(2) The decision on termination of kindergarten shall determine the term and manner of termination of his or her work and regulate the manner of allocation of children who attended kindergarten to other appropriate institutions.

Article 47

The provisions of Articles 44 to 46 of this Law shall apply mutatis mutandis to other legal and natural persons engaged in the activity of preschool education.

IX. KINDERGARTEN FINANCING

Article 48 (OG 94/13)

- (1) The founder of a kindergarten shall be obliged to provide funds for the establishment and operation of a kindergarten.
- (2) The kindergarten shall provide funds by selling services on the market and from other sources in accordance with the law.
- (3) If two or more founders jointly establish a kindergarten, the funds referred to in paragraph 1 of this Article shall be provided by the founders in accordance with the act of incorporation.
- (4) The kindergarten, which has established units of local and regional self-government, charges its services from the parents-users of services, in accordance with the criteria determined by the representative body of that unit, except for the preschool program, which is free of charge for parents.
- (5) The funds referred to in paragraph 4 of this Article shall be paid into the budget of the local and regional self-government unit that established the kindergarten or the kindergarten giro account, if so decided by the representative body of the local and regional self-government unit.

Article 49

- (1) The criteria for securing funds for meeting public needs in the field of preschool education in the area of the unit of local and regional self-government shall be determined by the representative body of the county, that is, the City of Zagreb.
- (2) Local and regional self-government units are obliged to allocate at least as much funds for preschool education as the representative body of the county, that is, the City of Zagreb, determines by its criteria.
- (3) The use of the funds referred to in paragraphs 1 and 2 of this Article shall be decided by the unit of local and regional self-government which provided the funds in its budget, in accordance with the criteria established by the representative body of the county, that is, the City of Zagreb.

Article 50 (OG 94/13)

(1) Part of the funds for public needs programs in the field of preschool education shall be provided in the state budget.

(2) In accordance with paragraph 1 of this Article, public education shall be considered as education programs:

- for children with disabilities and gifted children,
- for children of early and preschool age of Croatian citizens abroad,
- for children of early and preschool age from persons belonging to national minorities,
- pre-school program.

(3) The manner of disposal of funds from the state budget and the criteria for co-financing individual programs referred to in paragraph 2 of this Article shall be prescribed by the minister responsible for education.

5. Rulebook on the manner of disposal of the state budget funds and the criteria for co-financing of the preschool education program

Article 51

(1) The regulations governing the salaries, allowances and other income of public servants and employees of employees shall apply to the determination and calculation of salaries, allowances and other income of kindergarten workers owned by a unit of local and regional self-government or the Republic of Croatia. in primary education, if these regulations are more favorable to workers.

(2) On behalf of kindergarten workers, the union collectively negotiates and signs a collective agreement with the founder of the institution, ie the financier.

X. KINDERGARTEN DOCUMENTATION

Article 52

(1) The kindergarten shall keep pedagogical and health records and records on children.

(2) Forms of pedagogical documentation and records shall be prescribed by the minister competent for education.

(3) The forms of health documentation and records shall be prescribed by the minister competent for health.

(4) The means for keeping the documentation referred to in paragraph 1 of this Article shall be provided by the founder of the kindergarten.

6. Rulebook on forms and contents of pedagogical documentation and records of children in kindergarten

8. Rulebook on forms of health documentation of preschool children and records in kindergarten

XI. PROHIBITION OF SALES AND SALES IN KINDERGARTENS

Article 52a (OG 94/13)

The promotion and sale of goods and / or services that do not serve the purposes of education or are detrimental to the health, growth and development of children of early and pre-school age are not permitted in kindergartens.

XII. INFRINGEMENTAL PROVISIONS

Article 52b (OG 94/13)

(1) A kindergarten shall be fined in the amount of HRK 10,000 to HRK 15,000 for:

- if he did not adopt the kindergarten curriculum in accordance with the provisions of this Act,

- if he has not adopted the annual plan and program in accordance with the provisions of this Law,
- if it does not respect the provisions of the State pedagogical standard of pre-school education,
- if he performs educational work without a decision on starting work or a decision on starting work in changed conditions,
- if he does not publish the competition in accordance with the provisions of this Law,
- if he does not keep the documentation and records prescribed by this Law,
- organizes on its premises the promotion and sale of goods and / or services which do not serve the aims and contents of education or are detrimental to the health, growth and development of young and pre-school children,
- if he acts contrary to the provisions of Article 25 of this Law.

(2) The responsible person in the kindergarten shall also be fined from HRK 5,000 to 8,000 for the offense referred to in paragraph 1 of this Article.

XIII. TRANSITIONAL AND FINAL PROVISIONS

Article 53

(1) The state pedagogical standard of preschool education referred to in Article 6 of this Act shall be adopted by the Parliament of the Republic of Croatia within 6 months from the day this Law enters into force.

(2) The implementing rules referred to in Article 14 (2) and (3), Article 17 (1), Article 18 (1) and (2), Article 22, Article 23 (4), Article 24 (3). , Article 28 (7), Article 30 (2), Article 33 (2), Article 50 (3), Article 52 (2) and (3) of this Act shall be obliged to issue the authorized state administration bodies determined by this Law. within six months from the entry into force of this Act.

Article 54

Until the adoption of the regulations referred to in Article 53 of this Act, the following shall apply:

- Decision on Elements of the Standard of Social Care for Preschool Children (Official Gazette 29/83),
- Decision on the Elements of the Specific Needs Standards for Children with Disabilities (Official Gazette 47/87),
- Program orientation of pre-school education (Journal of the Ministry of Culture and Education of the Republic of Croatia, No. 7/8 of 10 June 1991).

Article 55

(1) Educators and associates who, on the day this Act enters into force, are employed indefinitely in kindergarten but do not have the necessary degree of professional qualification, may continue to perform the duties of an educator or associate if they have the appropriate type of professional qualification prescribed. Law on Social Care for Preschool Children (Official Gazette 18/91 - consolidated text and 27/93), under the conditions prescribed by this Act.

(2) Nurses who, on the day this Act enters into force, find themselves in the workplace of an educator in a kindergarten may continue to perform these tasks in educational groups until the child is three years of age.

(3) Associates in preschool education who, at the date of entry into force of this Act, were found in the workplace of a kindergarten teacher in kindergarten may continue to perform these tasks in educational groups until the child's third year of age.

(4) Caregivers who, on the day this Act enters into force, find themselves in the workplace of an educator in a kindergarten may continue to perform these tasks in educational groups until the child is three years of age.

(5) Persons who have graduated from an educator's school and who were found at the kindergarten teacher's workplace on the day this Act enters into force may continue to perform these tasks in all age groups.

(6) Persons found in preschool education in religious communities or religious kindergartens who do not have the appropriate type of education according to the provisions of this Act may continue to perform these tasks.

(7) Persons referred to in Paragraphs 1 to 6 of this Article may start working in another kindergarten for an indefinite period of time, unless persons who meet the requirements referred to in Article 24, Paragraph 2 of this Act are invited to tender.

Article 56

The obligation to take the professional exam is provided by the kindergarten educators and professional associates who for the first time start working in the kindergarten after the rulebook referred to in Article 28, paragraph 7 of this Act enters into force.

Article 57

Public institutions and other legal and natural persons carrying out the activity of preschool education shall harmonize their organization, work and business, statutes and other general acts with the provisions of this Act within one year from the day of its entry into force.

Article 58

A person who performs daily social care activities for children in another family in accordance with the provisions of the Law on Social Care for Preschool Children (Official Gazette 18/91 - consolidated text and 27/93) may continue to perform this activity. within the kindergarten in which she is employed.

Article 59

Individuals who have been authorized to perform childcare activities on their own personal work, or as a secondary occupation under the Law on Social Care for Preschool Children, who are no longer able to perform such activities under the provisions of this Act, shall cease to perform these activities within the expiration of one year. days from the day this Law enters into force, which shall be determined by a decision of the competent administrative body of the County, that is, the City Office of the City of Zagreb.

Article 60

With the entry into force of this Act, the Law on Social Care for Preschool Children (Official Gazette 18/91 - consolidated text and 27/93) shall cease to apply.

Article 61

This Law shall enter into force on the eighth day after its publication in the Official Gazette.

Zagreb, 17 January 1997

Transitional and Final Provisions of the Law on Amendments to the Law on Preschool Education

NN 94/13

Article 22

(1) The national curriculum and the Ordinance referred to in Article 7 of this Act shall be adopted by the minister responsible for education within one year from the day this Law enters into force.

(2) The ordinance referred to in Article 11 of this Act shall be passed by the minister competent for education within six months from the day this Law enters into force.

(3) The provisions of the Ordinance on the type of professional qualification of professional employees and the type and degree of professional qualification of other employees in kindergarten (Official Gazette 133/97) shall remain in force until the Ordinance referred to in paragraph 2 of this Article enters into force, unless contrary to the provisions of this Act.

Article 23

Kindergartens and other legal entities implementing preschool education programs shall harmonize the provisions of the statute and other general acts with the provisions of this Act within 90 days from the day of its entry into force.

Article 24

This Law shall enter into force on the eighth day after its publication in the Official Gazette, except for the provision of Article 10 of this Act, which shall enter into force on 31 August 2014.

Transitional and final provisions of OG 98/19

Article 3

This Law shall be published in the Official Gazette and shall enter into force on 1 January 2020.